SEMI-FINAL BRIEF: TEAM T11 MEMORIALS

Prosecutor v General Thorn: flaws, concessions, new material and tactics

How to read this: sections 2 and 4 are for the round where **we are Prosecution**; section 3 is for the round where **we are Defence**. Highlighted text is what to remember first. Paragraph numbers refer to the Statement of Agreed Facts (SAF) unless stated.

1. Overview of T11

- **Their Prosecution (T11P):** Count 1: biological experiment, plus two alternatives (inhuman treatment, then torture), plus a human-rights section. Count 2: ordering only; inducing is in the prayer but not argued in the body.
- **Their Defence (T11D):** Count 1: concedes protected status and does not contest that an armed conflict existed; fights nexus, the experiment elements, the alternatives and Article 25(3)(c) purpose. Count 2: purpose, mental element, "the order was not for a crime", distinction and precaution, military necessity, and Article 52(2) interpretation.

2. Their concessions (use these)

Concession	Where	Useful when we are
"Although the Titan soldiers were protected persons"	T11D pp 3, 4, 5	**Prosecution:** Elements 4 and 5 are not in dispute. Say so in rebuttal and spend time elsewhere.
They argue only **nexus**, not the existence of an armed conflict ("nexus with **the** international armed conflict")	T11D 1.1.2, p 5	**Prosecution:** existence of the IAC is not contested.
"Thorn ordered the strikes and provided the coordinates"	T11D facts, p 3	**Prosecution:** they never challenge Thorn's authority to order.
"the initial half-dose **caused** headaches, disorientation and paranoia"; "sporadic disorientation and paranoia **continued**"	T11D pp 7–8	**Prosecution:** Element 2 facts admitted.
"consent is not advanced as an independent defence"	T11D p 9	**Prosecution:** no answer on the doubled dose without consent.
T11P cites *Hirgigo* [120]: purpose "may encompass… intended future use"	T11P p 18	**Defence:** "My learned friends accept that purpose means intended future use."

3. Flaws in their Prosecution memorial (when we are Defence)

Count 2

1. **Wrong mental standard for ordering.** They say awareness of a "substantial likelihood" is enough (T11P 2.4.3, citing *Blaškić* Appeal and Schabas). That is the ICTY standard. At the ICC, Article 30 excludes *dolus eventualis* (*Lubanga* Appeal [447]; *Bemba* Confirmation [360]). Our Defence Submission 2 is built on this.
2. **Knowing they were "schools" is not knowing they were civilian.** T11P 2.2.1 says Thorn "was fully aware that the targeted objects are schools". Schools can be military objectives: Article 8(2)(b)(ix) itself says "provided they are not military objectives". Their own text concedes that "mere awareness that the attack may affect civilian objects is insufficient".
3. **Authority comes only from his title.** They rely on "his position as Chief" (2.4.1) and never deal with the fact that the only recorded exchange is with the President, his superior. Our Defence Submission 3 goes straight at this.
4. **No inducing argument in the body.** If ordering fails, their memorial has no fallback. They may still raise inducing orally.

5. **They plead distinction and precaution as if they were the crime** (2.3.1–2.3.2, "failing to verify"). Our **Article 22(2)** point applies: precautions are not the elements of Article 8(2)(b)(ii).
6. **They describe Thorn as the direct perpetrator:** "General Thorn directed an attack" (2.1) and "missile strikes **conducted by General Thorn**" (p 19). He is charged as the one who ordered, not the one who fired.
7. **A confused sentence on p 18:** "the previous five schools were struck only after their conversion had been confirmed but no positive action had yet been taken to use those schools". It mixes up the five schools and the three.

Count 1

8. **Factual error on comas.** T11P 1.3.1 lists "four were treated in induced comas" as suffering caused by Jaku. The comas came before Jaku (¶15), and Jaku woke them (¶18).
9. **Torture purpose is speculation:** Jaku used "at least partly, to compel their return to combat" (1.4). No Agreed Fact supports coercion.
10. **Weak armed-conflict facts for April.** They rely only on ¶11–12 (deployment) and claim the IAC "continued without interruption". They do not use the fire (¶13), the five soldiers left inside Pallavon (¶13) or the forensics in ¶53. Our Defence point "no hostilities before 2 April" meets little resistance.
11. **They ignore footnote 33.** Their protected-persons section relies on GC I arts 12–13, *Ntaganda* Appeal [63] and the German manual. No answer to footnote 33, and no answer to the contrast with Article 8(2)(b)(x)-2 ("in the power of an adverse party"). Our point that *Ntaganda* itself distinguished 8(2)(a) stands unanswered.
12. **Section 1.6 (human rights)** is not an element of any charged crime, and the ICCPR binds States, not individuals.
13. **Their own "purpose" helps the Defence.** They say Thorn's purpose was "to restore and enhance the Titans' combat capability" (1.5.2). That is not the purpose of facilitating an experiment.
14. **Wrong citations:** Dr Loff's statements cited to SAF [16] (they are in ¶17); the nexus test cited to *Kunarac* [57] (it is at [58]).

4. Flaws in their Defence memorial (when we are Prosecution)

Count 2

1. **They never mention "no positive action" (¶42).** They write only "teaching had ceased". Read the whole sentence of ¶42 aloud.
2. **They misuse ¶29.** "Pallavon used the training camps to train recruits, receive weapons…" is cited to ¶29, but ¶29 is about town halls, not schools.
3. **They mis-cite ¶40.** "Thorn authorized the strikes based on his assessment" is cited to ¶40, which concerns the earlier strikes of 13–14 July.
4. **They argue military necessity** (2.4.3). Answer: *Kordić* [54] and *Hostages* p 1256, "Military necessity or expediency do not justify a violation of positive rules" (rebuttal point 2-A9).
5. **Their 25(3)(b) argument is circular** (2.3.1): the order "did not concern the commission of the charged crime" only because Thorn assessed the schools as military objectives. That repeats the mental-element argument. They never dispute that he **gave** the order.
6. **They never explain why Thorn dropped the confirmation practice** used before every earlier strike (¶41), although their facts record that Veyar questioned the strike.
7. **Index error:** *Territorial Dispute* (Libya/Chad) is listed as ICTY. It is an ICJ case.

Count 1

8. **Nothing on the doubled dose for conscious soldiers.** Their emergency argument covers only the four comatose soldiers, not raising the dose without asking soldiers who were awake (¶19).
9. **"Apparent progress" is not in the facts.** ¶19 says the increase was suggested "for optimal results", in answer to the side effects.

10. **They say the four soldiers "rendered unconscious likewise recovered".** Jaku did not render them unconscious. Small, but it shows careless reading.

5. New material in their memorials (be ready)

New point	Where	Our existing answer
Alternatives: inhuman treatment and torture (both memorials)	T11P 1.3–1.4; T11D 1.3–1.4	We pleaded biological experiments only. Not suggesting a change; only be aware a judge may ask. Safe line: the Prosecution's case is the biological-experiment form of Article 8(2)(a)(ii).
Alcala & Nasu (2026): "recurrent past military use and ease of conversion are relevant indicators" of purpose	T11D 2.4.1 (pp 115–16); T11P p 18	**Prosecution:** indicators must be concrete for this object; ¶42 records no positive action (rebuttal 2-A4, 2-A5).
Prlić [123] on purpose	T11D p 16	Same principle as *Hirgigo*. No conflict.
ICRC Commentary on the Schools Guidelines (2025)	T11D p 16	Ask to see it if relied on orally.
Art 52(3) "governs the targeting assessment without altering the Prosecution's burden" (Werle and Jeßberger para 1429)	T11D p 16	**Prosecution:** rebuttal 2-A7 stands. Use is not in dispute, so only purpose remains.
Gbagbo Confirmation [242]–[245] (ordering test)	T11D 2.3	Same elements as *Kordić* [28] and *Ntaganda* [145].
ICRC Commentary GC IV (2025) art 147, paras 6722–6725; Customary Rule 110 (duty to treat the sick)	T11D Count 1	**Prosecution:** rebuttal 1-C2 (necessity must be convincingly shown) and 1-C5 (emergency).
Torture via US DoD Instruction 3216.02 (commanders influencing subordinates)	T11P 1.4	**Defence:** no fact supports a coercive purpose.
"A pause in operations does not suspend an IAC" (*Tadić* [70])	T11P 1.1.1	**Defence:** there must first be hostilities to pause; before 2 April there were none.

Verify before relying: they cite two **2026** journal articles (Alcala & Nasu; Jourdan, *IRRC*) and **2025** ICRC commentaries. They may be genuine but could not be checked here. If quoted at us, we may ask for the page.

6. Where they hit our weak spots

1. **Prosecution: the "eight were left as schools" line.** T11D counts 12 + 5 + 3 = 20: every matching school was eventually converted or emptied. Use this framing instead (it is our existing argument): "On 5 July, only twelve were converted. The rest were taken one by one, later, as replacements, each after its own conversion. These three never reached that second step." Do not say "eight were left alone" without that context.
2. **Prosecution: the pattern.** Alcala & Nasu (past use plus ease of conversion) is their strongest new authority on purpose. Answer with ¶42 and "concrete indicators about the object itself".
3. **Defence, Count 1: protected persons.** T11P relies on *Ntaganda* Appeal [63]. Answer: *Ntaganda* concerned crimes with no protected-person element; footnote 33 applies to every crime under 8(2)(a).
4. **Defence, Count 2: authority.** T11P says an implicit order suffices (*Blaškić* [281], *Strugar* [331], *Brđanin* [270]). Answer: the Agreed Facts record no instruction of any kind to the forces who fired; the only recorded exchange is with the President.
5. **Defence, Count 2: knowledge.** They will quote "even if they are not being used now" and Veyar's doubt. Answer (Defence Submission 2): he believed the schools were military objectives by purpose; believing is not knowing.

7. Tactics

1. **Lock in their concessions early.** As Prosecution: "My learned friends accept that the Titans were protected persons, do not dispute that an armed conflict existed, and do not dispute that Thorn gave the order and supplied the coordinates." As Defence: "My learned friends accept that purpose means intended future use."
2. **Read the whole sentence of ¶42.** Their Defence quotes half of it. Reading the "no positive action" part aloud is a strong moment in our Prosecution rebuttal.
3. **Correct facts politely, only where it matters:** as Defence, the comas came before Jaku (¶15, ¶18); as Prosecution, ¶29 is about town halls. Say it once and move on; do not nit-pick citations in front of the judges.
4. **When their Defence argues necessity:** rebuttal 2-A9 (*Kordić* [54]; *Hostages* p 1256). Our own Defence rule stays: never argue necessity ourselves.
5. **When their Prosecution says "substantial likelihood":** "Article 30 excludes *dolus eventualis*. *Lubanga* Appeal [447]; *Bemba* Confirmation [360]."
6. **If their Prosecution raises inducing orally:** note in surrebuttal that it is not argued in their memorial, then give our inducing answer: advice to a superior is not a substantial contribution.
7. **Our rebuttal file already covers most of their arguments:** Count 1 points 1-C3, 1-C4, 1-C5, 1-D2, 1-D3, 1-E1; Count 2 points 2-A3, 2-A4, 2-A7, 2-A9, 2-B3, 2-C2.

8. Overall assessment

- **Strongest:** Count 2 Defence purpose (the 20-school arithmetic, Alcala & Nasu, *Prlić*, the ICRC Schools Guidelines).
- **Weakest as Prosecution:** the ordering mental standard, authority, and the armed-conflict facts for Count 1.
- **Weakest as Defence:** they leave out "no positive action", argue military necessity, and make large concessions on Count 1.
- **Our edge:** our memorials engage footnote 33, the ¶18–19 consent facts and the confirmation practice in ¶41. T11 does not touch any of them.